

Court No. - 40

Case :- WRIT - C No. - 31109 of 2023

Petitioner :- Bhanu Dutt Pandey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Amit Kumar Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. The Advocates are abstaining from judicial work. The petitioner appears in person. Notice had already been served upon Shri Narendra Kumar Tiwari, learned counsel for Electricity Department.

2. Present writ petition has been preferred for a direction to respondent nos.3 and 4 to issue electricity bill to the petitioner according to check meter from March 2017 to till date and for a further direction to respondents to consider/ accept the amount of bill according to check meter.

3. The petitioner claims that electricity connection of 2 KW was accorded in the year 2014. It is complained that since 2014 till February 2017 no electricity bill was issued by the department and in most arbitrary manner a demand of Rs.1,36,811/- was made in the year 2017. Aggrieved with the same, the petitioner had filed a case being Case No.278 of 2021 before the Electricity Consumer Grievance Redressal Forum, Prayagraj. The Forum had passed an order dated 28.8.2021 with the consent of respondent no.3 and directed for installation of check meter and to modify the bill accordingly to check meter. Once no action was taken, the petitioner had approached to Electricity Ombudsman, which had also passed an order on 3.2.2023 directing to install check meter. Consequently, the check meter was installed on 11.3.2023 and as per the reading of check meter only 98 units of electricity was consumed by the petitioner in 39 days. As such it is submitted that the demand raised by the department is unsustainable.

4. In this backdrop, the petitioner states that till date the grievance of the petitioner has not been redressed and the electricity has also been disconnected vide order dated 28.2.2023. On account of disconnection of electricity, the petitioner is suffering irreparable loss and injury. The petitioner also makes a statement at Bar that he is ready to deposit Rs.50,000/- today itself.

5. Considering the facts and circumstances of the case, in the interest of justice, it is provided that in case the petitioner deposits Rs.50,000/- to the department concerned today itself, the electricity connection will be restored to the petitioner forthwith. The Electricity Department shall file response in the matter by the next date fixed.

6. Put up this matter as fresh on 16th October, 2023.

7. Let a copy of this order be given to the petitioner today itself on payment of usual charges.

Order Date :- 13.9.2023

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1. Heard learned counsel for the petitioner, Sri Devesh Vikram, learned Additional Chief Standing Counsel for State-respondent nos.1 to 4 and Sri Rajesh Kumar Mishra, Advocate holding brief of Sri N.K. Tiwari, learned counsel for respondent no.5.

2. In response to order dated 13.9.2023 passed by this Court, Sri Mishra, learned counsel appearing for respondent no.5 has placed instructions dated 11.9.2023 sent by Executive Engineer, Urban Electricity Distribution Division, Prayagraj. On the basis of said instructions, it is claimed by respondents that on complaint of petitioner, check meter has been installed at the premises of the petitioner and accordingly, correct bill of outstanding amount Rs.1,44,950/- is being raised against 2274 units. It is also apprised that the petitioner has deposited only Rs.14,515/- in the month of February 2019 and since then he has not deposited any monthly payment.

3. Learned counsel for the petitioner submits that he has no grievance as the outstanding bill has already been quantified and in case in view of provisions of Clause 6.14 of the U.P. Electricity Supply Code, 2005 (hereinafter referred as 'Code, 2005') easy installments is fixed, he will clear all the outstanding dues.

4. Sri Mishra, learned counsel for respondent no.5 states that in case the petitioner approaches the Executive Engineer, Urban Electricity Distribution Division, Prayagraj, in view of aforesaid provision of Code, 2005 easy installments would be fixed therein.

5. Considering the facts and circumstances and also in view of the fact that the amount has already been quantified as reflects from the instructions dated 11.9.2023, once the petitioner is inclined to clear all the outstanding amount, we find that no

useful purpose would be served in keeping this petition pending and with the consent of the parties, we direct that in case, the petitioner approaches Executive Engineer, Urban Electricity Distribution Division, Prayagraj within a week's time along with a certified copy of this order, the fixation of easy installment be done keeping in view of the provisions of Clause 6.14 of the Code, 2005.

6. With the aforesaid leave, the present writ petition stands disposed of.

Order Date :- 2.11.2023

Manish Himwan